

General Terms & Conditions

for the rental of the photo studio, equipment, and photography services · Stefan Baumann-Fonseca / FRAME · Neustiftgasse 107/2, 1070 Vienna · Version 08/2026 · Courtesy translation — the German version (AGB) prevails.

§ 1 SCOPE AND CONTRACTING PARTIES

These General Terms and Conditions (T&C) apply to all contracts concerning the provision of photo studio space, lighting equipment and accessories for use, as well as related photography services provided by Stefan Baumann-Fonseca / FRAME, Neustiftgasse 107/2, 1070 Vienna, Austria (hereinafter referred to as the “Lessor”).

The Lessor’s contracting party is the renter or client (hereinafter referred to as the “Renter”). Renters may be consumers within the meaning of the Austrian Consumer Protection Act (KSchG, B2C) or businesses (B2B).

Deviating terms and conditions of the Renter shall not be recognized unless the Lessor expressly agrees to their validity in writing.

§ 2 CONCLUSION OF CONTRACT AND BOOKING

All offers made by the Lessor are subject to change and non-binding.

The studio or a service may be booked in writing, by e-mail, or via an online enquiry form.

The contract is only concluded upon written confirmation by the Lessor (e-mail is sufficient).

§ 3 RENTAL PERIOD AND OVERTIME

The studio is rented for the period agreed in the contract. The rental period begins at the agreed admission time (including in the event of late arrival by the Renter) and ends when the studio is vacated.

An extension of the rental period is only possible by prior arrangement and subject to availability. Each additional hour or part thereof will be charged at the Lessor’s current rates.

If the rental period is exceeded without prior arrangement, the Lessor is entitled to claim appropriate compensation for use as well as any damages (e.g. due to the loss of subsequent bookings).

§ 4 PRICES, PAYMENT TERMS, AND DEPOSIT

The prices valid at the time of booking according to the current price list apply. All prices are generally exclusive of VAT.

The invoice amount is payable within 14 days of receipt of the invoice, free of charges, by bank transfer to the Lessor’s designated account.

Deposit: The Lessor reserves the right to request a deposit of 50% of the fee, or an agreed amount, prior to handover of the studio. The deposit may be transferred in advance. It will be deducted from the total amount after proper, damage-free return of the studio. The Lessor reserves a right of retention in the event of visible damage.

§ 5 BOOKING & CANCELLATION TERMS

Payment terms: First-time and new customers pay 100% of the expected rental fee in advance by bank transfer, or in cash/by card on site on the day of production. Regular customers are invoiced with a payment term of 7 days after the production. Consumption-based additional costs (overtime, background paper) are determined immediately after the end of the production and charged subsequently.

Cancellation fees: If a firmly booked production has to be postponed or cancelled, the following deadlines and rates apply with respect to the pure studio rental fee:

Up to 7 days before the start of production: free of charge

· 6 to 3 days before the start of production: 50% of the rate

· From 48 hours before the start of production, or in the event of no-show: 100% of the rate

The studio is handed over broom-clean. If required, and for multi-day bookings, a final cleaning fee of € 60 will be charged. In the event of exceptional soiling (e.g. through the use of glitter, confetti, liquids or body paint) or a set size of more than 8 persons (crew, clients, models, etc.), a one-off fee of € 150 will be charged due to the increased cleaning and infrastructure effort.

Cancellations must be made in writing (e-mail is sufficient).

§ 6 RIGHT OF WITHDRAWAL FOR CONSUMERS (B2C) UNDER THE FAGG

There is no statutory 14-day right of withdrawal, which is why cancellation terms may be agreed freely. Under the Austrian Distance and Off-Premises Transactions Act (FAGG), contracts concerning accommodation and the rental of premises for purposes other than residential use or for leisure purposes are explicitly exempt from the statutory withdrawal period (§ 18 para. 1 no. 10 FAGG).

Where appropriate, we recommend taking out rental cancellation insurance.

§ 7 USE OF THE STUDIO AND OBLIGATIONS OF THE RENTER

The Renter undertakes to treat the studio premises, the furnishings, and the rented lighting and photography equipment with care and in a professional manner.

The studio may only be entered wearing clean footwear suitable for studio use (no high heels).

Illegal, immoral or dangerous activities (in particular open fire, pyrotechnics, dangerous stunts) or any other improper use, damage or soiling are strictly prohibited throughout the studio.

The studio and all equipment must be returned at the end of the rental period in their original, broom-clean condition.

§ 8 LIABILITY AND DAMAGES

Liability of the Renter: The Renter is liable without limitation for all damage or losses (e.g. theft) caused by the Renter, their employees, models, make-up artists, guests or visitors to the studio premises, the furnishings, furniture, and the provided lighting and photography equipment.

Damage, malfunctions or defects to equipment must be reported to the Lessor immediately, at the latest upon handover at the end of the rental period. Concealment of damage creates an obligation to compensate for any resulting consequential damage (e.g. loss of rental income from the subsequent renter).

Liability of the Lessor: The Lessor is liable in accordance with statutory provisions for damage resulting from injury to life, body or health. For other damage, the Lessor is only liable in cases of intent or gross negligence. Liability for slight negligence, loss of profit or consequential damage is excluded to the extent permitted by law (in particular in the B2B context).

§ 9 COPYRIGHT FOR PHOTOGRAPHY SERVICES

(Applies where the Lessor acts as photographer)

The photographer holds the copyright to the photographs produced in accordance with the Austrian Copyright Act (UrhG).

The client receives the usage rights to the photos required for the contractually agreed purpose. For B2C clients, commercial use or transfer to third parties requires a separate agreement.

Use of the images by the photographer for self-promotion (website, social media) is only permitted for B2C clients with their consent. For B2B clients, such use is deemed permitted unless objected to in writing in advance.

§ 10 APPLICABLE LAW, JURISDICTION, AND SEVERABILITY CLAUSE

Austrian law applies exclusively, to the exclusion of the conflict-of-law rules of private international law and the CISG. For consumers, this choice of law applies only to the extent that it does not deprive them of the protection afforded by mandatory provisions of the law of the state in which they have their habitual residence.

For all disputes arising from or in connection with this contract, the court with subject-matter jurisdiction for the Lessor's registered seat in Austria shall have exclusive jurisdiction, provided the Renter is a business (B2B). For consumers (B2C), the statutory places of jurisdiction apply (§ 14 KSchG).

Should individual provisions of this contract be or become invalid or unenforceable, the validity of the remaining provisions shall remain unaffected.

With my signature I confirm that I have read and accept the General Terms & Conditions of FRAME (Version 08/2026). In case of discrepancies, the German version prevails.

NAME IN BLOCK LETTERS

COMPANY / PROJECT

PLACE, DATE

SIGNATURE RENTER